PRO_SE,CIVIL

# U.S. District Court
## Eastern District of California - Live System (Sacramento)
## CIVIL DOCKET FOR CASE #: 2:26-cv-00004-DJC-JDP

(PS) Newanforbi v. Derrick et al
Assigned to: District Judge Daniel J. Calabretta
Referred to: Magistrate Judge Jeremy D. Peterson
Cause: 28:1983 Civil Rights

Date Filed: 01/05/2026
Jury Demand: None
Nature of Suit: 440 Civil Rights: Other
Jurisdiction: Federal Question

**Plaintiff**

**Brendan Ngehsi Newanforbi**

represented by **Brendan Ngehsi Newanforbi**
1455 Cat Tail Drive
Stockton, CA 95204
PRO SE

V.

**Defendant**

**A. Derrick**
*Parole Agent*

represented by **Erick J. Rhoan**
California Department of Justice
Civil Division / Torts
2550 Mariposa Mall
Suite 5090
Fresno, CA 93721
559-705-2359
Fax: 916-322-8288
Email: erick.rhoan@doj.ca.gov
*LEAD ATTORNEY*
*ATTORNEY TO BE NOTICED*

**Defendant**

**Katie Palacios**
*Director*

represented by **Bryan L. Malone**
Sims Lawrence & Broghammer
Sims Lawrence & Broghammer

1478 Stone Point Drive
Ste 450
95661
Roseville, CA 95661
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**Cynthia Gill Lawrence**
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**Blaze Van Dine**
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916-797-8881
Email: blaze@sims-law.net
*ATTORNEY TO BE NOTICED*

**Defendant**

**G. Noguchi**
*Supervising Parole Agent*

represented by **Erick J. Rhoan**
(See above for address)
*LEAD ATTORNEY*
*ATTORNEY TO BE NOTICED*

| Date Filed | # | Docket Text |
|---|---|---|
| 01/05/2026 | 1 | COMPLAINT against All Defendants by Brendan Ngehsi Newanforbi. (Attachments: # 1 Civil Cover Sheet) (Deputy Clerk AMW) (Entered: 01/05/2026) |
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| 01/05/2026 | | RECEIPT number 200016415 for $405.00 for Civil Filing Fee. (Deputy Clerk AMW) (Entered: 01/05/2026) |
| 01/05/2026 | 2 | SUMMONS ISSUED as to *A. Derrick, G. Noguchi, Katie Palacios* with answer to complaint due within *21* days. Attorney *Brendan Ngehsi Newanforbi* *1455 Cat Tail Drive* *Stockton, CA 95204*. (Deputy Clerk AMW) (Entered: 01/05/2026) |
| 01/05/2026 | 3 | CIVIL NEW CASE DOCUMENTS ISSUED; (Attachments: # 1 Consent Form) (Deputy Clerk AMW) (Entered: 01/05/2026) |
| 01/05/2026 | | SERVICE AT COUNTER: 3 Civil New Case Documents, 2 Summons served on Brendan Ngehsi Newanforbi. (Deputy Clerk AMW) (Entered: 01/05/2026) |
| 01/12/2026 | 4 | SUMMONS RETURNED EXECUTED: A. Derrick served on 1/6/2026, answer due 1/27/2026; G. Noguchi served on 1/6/2026, answer due 1/27/2026; Katie Palacios served on 1/6/2026, answer due 1/27/2026. (Deputy Clerk AMW) (Entered: 01/13/2026) |
| 01/12/2026 | 5 | FIRST AMENDED COMPLAINT against A. Derrick, G. Noguchi, Katie Palacios by Brendan Ngehsi Newanforbi. (Deputy Clerk AMW) (Entered: 01/13/2026) |
| 01/12/2026 | 6 | REQUEST to RECEIVE EMAIL NOTIFICATION of the Docket by Brendan Ngehsi Newanforbi. (Deputy Clerk AMW) (Entered: 01/13/2026) |
| 01/20/2026 | 7 | SUMMONS RETURNED EXECUTED: A. Derrick; G. Noguchi; and Katie Palacios mailed/served on 1/13/2026. (Deputy Clerk RRB) (Entered: 01/21/2026) |
| 01/28/2026 | 8 | EX PARTE MOTION for Preservation of Evidence and Limited Expedited Discovery by Brendan Ngehsi Newanforbi. (Deputy Clerk AMW) (Entered: 01/29/2026) |
| 01/30/2026 | 9 | MOTION to QUASH insufficient service of process by A. Derrick, G. Noguchi. Attorney Rhoan, Erick J. added. Motion Hearing set for 3/19/2026 at 10:00 AM in Courtroom 9 (JDP) before Magistrate Judge Jeremy D. Peterson. (Attachments: # 1 Declaration of Erick J. Rhoan, # 2 Proof of Service)(Rhoan, Erick) Modified on 2/4/2026 (KEZ). (Entered: 01/30/2026) |
| 02/02/2026 | 10 | OPPOSITION by Brendan Ngehsi Newanforbi to 9 Motion to Quash. (Deputy Clerk KEZ) (Entered: 02/03/2026) |
| 02/04/2026 | 11 | PROOF of SERVICE by Brendan Ngehsi Newanforbi re 10 Opposition to Motion. (Deputy Clerk KEZ) (Entered: 02/05/2026) |

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| 02/12/2026 | 12 | REPLY by A. Derrick, G. Noguchi to RESPONSE to 9 Motion to Quash,. (Rhoan, Erick) (Entered: 02/12/2026) |
| 02/20/2026 | 13 | MOTION for LEAVE to File Supplemental Opposition to 9 Motion to Quash by Brendan Ngehsi Newanforbi. (Deputy Clerk KML) (Entered: 02/24/2026) |
| 02/26/2026 | 14 | MOTION to STRIKE or, in the alternative, OPPOSITION to Plaintiff's Motion for Leave to file supplemental opposition to Defendants' Motion to Dismiss Plaintiff's First Amended Complaint; MEMORANDUM of Points and Authorities by A. Derrick, G. Noguchi. Motion Hearing SET for 3/19/2026 at 10:00 AM before Magistrate Judge Jeremy D. Peterson. (Rhoan, Erick) Modified on 3/3/2026 (LMS). (Entered: 02/26/2026) |
| 02/26/2026 | 15 | MOTION for Leave to file Supplemental Opposition to Motion to Dismiss by Brendan Ngehsi Newanforbi. (Attachments: # 1 Proposed Order) (Deputy Clerk LMS) (Entered: 02/27/2026) |
| 02/26/2026 | 16 | [PROPOSED] SUPPLEMENTAL OPPOSITION by Brendan Ngehsi Newanforbi to 9 Motion to Dismiss Plaintiff's First Amended Complaint. (Deputy Clerk LMS) (Entered: 02/27/2026) |
| 03/04/2026 | 17 | REPLY in support of 15 Motion for Leave to file Supplemental Opposition to Motion to Dismiss by Brendan Ngehsi Newanforbi. (Deputy Clerk KML) (Entered: 03/04/2026) |
| 03/09/2026 | 18 | NOTICE of Related Regulatory Investigation by Brendan Ngehsi Newanforbi (Deputy Clerk VLK) (Entered: 03/10/2026) |
| 03/09/2026 | 19 | DECLARATION of Brendan Ngehsi re Good Service Efforts. (Deputy Clerk VLK) (Entered: 03/10/2026) |
| 03/10/2026 | 20 | SUMMONS RETURNED EXECUTED: Katie Palacios served on 3/6/2026. Declination of MJ Jurisdiction due: 4/9/2026. (Deputy Clerk VLK) (Entered: 03/11/2026) |
| 03/18/2026 | 21 | MINUTE ORDER issued by Courtroom Deputy for Magistrate Judge Jeremy D. Peterson on 3/18/2026: Defendants' 14 Motion to Strike and 9 Motion to Quash are ordered submitted without appearance and without argument pursuant to Local Rule 230(g). The 3/19/2026 hearing date is VACATED. If the court subsequently concludes that oral argument is necessary, a hearing will be set, and the parties notified accordingly. (Text only entry). (Deputy Clerk NAC) (Entered: 03/18/2026) |
| 03/18/2026 | | SERVICE BY MAIL: 21 Minute Order served on Brendan Ngehsi Newanforbi. (Deputy Clerk NAC) (Entered: 03/18/2026) |

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| 04/02/2026 | 22 | STIPULATION and PROPOSED ORDER Ext to Resp to Complaint re 5 Amended Complaint by Katie Palacios. Attorney Lawrence, Cynthia Gill added. (Lawrence, Cynthia) (Entered: 04/02/2026) |
| 04/03/2026 | 23 | MINUTE ORDER issued by Courtroom Deputy for Magistrate Judge Jeremy D. Peterson on 4/3/2026: The parties 22 Stipulation is APPROVED and the time within which Defendant Katie Palacios may move, answer or otherwise respond to the Complaint is hereby EXTENDED up to and including 4/6/2026. (Text Only Entry). (Deputy Clerk NAC) (Entered: 04/03/2026) |
| 04/03/2026 | | SERVICE BY MAIL: 23 Minute Order served on Brendan Ngehsi Newanforbi. (Deputy Clerk NAC) (Entered: 04/03/2026) |
| 04/06/2026 | 24 | MOTION to DISMISS by Katie Palacios. Attorney Malone, Bryan L. added. Motion Hearing set for 5/28/2026 at 10:00 AM in Courtroom 9 (JDP) before Magistrate Judge Jeremy D. Peterson. (Attachments: # 1 Proof of Service) (Malone, Bryan) (Entered: 04/06/2026) |
| 04/09/2026 | 25 | OPPOSITION by Brendan Ngehsi Newanforbi to 24 Motion to Dismiss. (Deputy Clerk KEZ) (Entered: 04/13/2026) |
| 05/18/2026 | 26 | MINUTE ORDER signed by Magistrate Judge Jeremy D. Peterson on 5/18/2026: Defendants' 24 Motion to Dismiss is ordered submitted without appearance and without argument pursuant to Local Rule 230(g). The 5/28/2026 hearing date is VACATED. If the court subsequently concludes that oral argument is necessary, a hearing will be set, and the parties notified accordingly. (Text Only Entry). (Deputy Clerk NAC) (Entered: 05/18/2026) |
| 05/18/2026 | | SERVICE BY MAIL: 26 Minute Order served on Brendan Ngehsi Newanforbi. (Deputy Clerk NAC) (Entered: 05/18/2026) |
| 05/20/2026 | 27 | NOTICE of APPEARANCE by Blaze Van Dine on behalf of Katie Palacios. Attorney Van Dine, Blaze added. (Van Dine, Blaze) (Entered: 05/20/2026) |
| 05/20/2026 | 28 | NOTICE of RELATED CASE(S) 2:26-cv-0004 DJC JDP PS, 2:26-cv-0195 TLN AC PS by Katie Palacios. (Van Dine, Blaze) (Entered: 05/20/2026) |

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| **Billable Pages:** | 3 | **Cost:** | 0.30 |